

Remuneration, Conditions of Service and Facilities of the Attorney General Act, 1995

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Remuneration, Conditions of Service and Facilities of the Attorney General Act, 2052

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Amending Acts

1. Remuneration, Conditions of Service and Facilities of the Attorney General (First Amendment) Act, 2054
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2. Some Nepal Laws Amendment Act, 2063 2063.6.28
3. Act to Maintain Gender Equality by Amending Some Nepal Acts, 2063 2063.7.17
4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
5. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 13 of the year 2052

An Act Made to Provide for the Remuneration, Conditions of Service and Facilities of the Attorney General

Preamble: Whereas it is desirable to provide for the remuneration, conditions of service and facilities of the Attorney General,

Now, therefore, be it enacted by the Parliament in the twenty-fourth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Remuneration, Conditions of Service and Facilities of the Attorney General Act, 2052".

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act, "Attorney General" means the Attorney General of Nepal appointed pursuant to subsection (2) of Article 147 of the Constitution of Nepal, amended by the Some Nepal Acts Amendment Act, 2072.omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. Chapter-2

Remuneration and Facilities

3. Remuneration: (1) The Attorney General shall be paid remuneration as specified in Schedule-1.

(2) If the resignation submitted by the Attorney General from his/her office is accepted, or upon the death of the Attorney General, or if the Attorney General retires from office due to any other reason, the Attorney

General shall be paid an additional one month's remuneration in addition to the remuneration payable up to the day of remaining in office.

(3) The remuneration and additional remuneration payable to the Attorney General pursuant to subsection (2) shall be paid, depending on the circumstances, to the Attorney General or to the person designated by the Attorney General. If the Attorney General has died, and has designated someone, and that designated person is alive, such remuneration shall be paid to the nearest heir of the Attorney General. 4. Housing Facility: (1) The Government of Nepal shall arrange a government house for the residence of the Attorney General.

If such a house is not arranged, or if the Attorney General does not have his/her own suitable house in the Kathmandu Valley and has to rent a house, the Attorney General shall be paid an amount equal to half of his/her monthly remuneration per month as house rent. (2) An Attorney General living in his/her own house shall be paid an amount as specified in Schedule-1 for house maintenance and sanitation. (3) If a government house is arranged for the Attorney General on behalf of the Government of Nepal pursuant to subsection (1), the maintenance and upkeep of such house shall be done by the Government of Nepal. (4) The facility under this section shall be provided to the Attorney General for up to seven days from the date of his/her retirement from office. 5. Electricity, Water and Telephone Facilities: (1) The expenses for installing one landline telephone and the amount required as a deposit at the residence of the Attorney General shall be borne by the Government of Nepal. (2) The Attorney General shall be paid an amount as specified in Schedule-1 for electricity, water and telephone bills. 6. Vehicle and Fuel Facility: (1) The Attorney General shall be provided with one motor vehicle with a driver, one hundred fifty liters of petrol monthly and five liters of mobile oil quarterly. (2) The Attorney General using his/her private motor vehicle shall be provided with an amount equal to the initial level of the salary scale of a light vehicle driver of the Government of Nepal for the driver, as well as one hundred fifty liters of petrol monthly and five liters of mobile oil quarterly. (3) The maintenance and upkeep of the motor vehicle provided pursuant to subsection (1), as well as the arrangement of grease, shall be done by the Central Services Department. (4) The Attorney General shall not be required to submit bills or vouchers for the petrol and mobile oil used in the vehicle. (5) The facility under this section shall be provided to the Attorney General for up to seven days from the date of his/her retirement from office. Chapter-3 Daily and Travel Allowances 7.

Daily and Travel Allowances: (1) When the Attorney General travels within Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for work related to his/her office, the daily and travel allowance shall be paid as follows: (a) Daily Allowance: Amount as specified in Schedule-1. (b) Travel Allowance: (1) When traveling on foot: Amount as specified in Schedule-1. (2) When traveling by bus: Fare chargeable for one person. (3) When traveling by train: First class ticket fare for one person. (4) When traveling by airplane: Ticket fare for one person. (5) When traveling by other vehicle: Fare chargeable for one person. (2) When the Attorney General travels outside Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for work related to his/her office or to participate in any ceremony, festival, international conference, seminar, etc., on behalf of the Government of Nepal, the daily and travel allowance shall be paid as follows: (a) Daily Allowance: Amount as specified in Schedule-2. (b) Travel Allowance: (1) When traveling by motor vehicle: Motor vehicle fare as per the bill for one person. (2) When traveling by train: First class ticket fare for one person. (3) When traveling by airplane: Business class ticket fare for one person. (4) When traveling by waterway: Expenses as per the bill for one person. (3) If the Attorney General formally travels outside Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. as a guest of foreign states, while staying in such state, the Attorney General

shall receive daily allowance at half the rate of the daily allowance payable pursuant to clause (a) of subsection (2). 8. Other Provisions Relating to Travel: (1) The Attorney General shall receive half of the daily allowance for the day of return from travel, and such allowance shall be half of the daily allowance payable for the place of stay on the day prior to the day of return. (2) For the payment of travel allowance, the Attorney General shall submit the travel bill along with necessary evidence such as treasury certificate, logbook, receipts, etc., within thirty-five days from the date of return from travel. 9. Insurance Expenses and Airfare Tax: When the Attorney General travels by airplane for work related to his/her office or to participate in any ceremony, festival, international conference, seminar, etc., on behalf of the Government of Nepal, insurance expenses of three hundred thousand rupees and the amount chargeable for airfare tax shall be paid. 9A. Repealed by the Some Nepal Laws Amendment Act, 2063. 10.

Clothing Allowance: (1) When the Attorney General goes outside Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for work related to his/her office or to participate in any ceremony, festival, international conference, seminar, etc., on behalf of the Government of Nepal, an amount as specified in Schedule-1 shall be paid as clothing allowance once every three years. (2) When going outside Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. pursuant to subsection (1), if the Attorney General has received approval to take his/her wife added by the Act to Maintain Gender Equality by Amending Some Nepal Acts, 2063. or husband along, his/her wife or husband amended by the Act to Maintain Gender Equality by Amending Some Nepal Acts, 2063. shall receive an amount equal to half of one month's remuneration of the Attorney General once every three years as clothing allowance. 11. Leader Allowance: When the Attorney General goes outside Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. as the leader of a delegation, the Attorney General shall receive an additional amount of twenty-five percent of the daily allowance payable to him/her as a leader allowance. 12. Contingent Expenses: (1) When the Attorney General goes on an inspection tour of offices under his/her jurisdiction, contingent expenses not requiring submission of an account shall be paid at the rate of one thousand rupees per occasion, up to a maximum of two times a year. (2) When the Attorney General goes outside Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to participate in any ceremony, festival, international conference, seminar, etc., contingent expenses shall be paid as per the decision of the Government of Nepal. 13. Amended by the Some Nepal Acts Amendment Act, 2072. Festival Expenses: The Attorney General shall receive every year amended by the Some Nepal Acts Amendment Act, 2072. an amount equal to one month's remuneration being received by him/her as festival expenses. 14. Amended by the First Amendment. Leave: (1) The Attorney General may be entitled to the following types of leave: (a) Festival leave and casual leave (b) Home leave (c) Sick leave (d) Bereavement leave (e) Special leave (2) Leaves under clauses (a), (b), (c) and (d) of subsection (1) shall be with full remuneration, and leave under clause (e) shall be with half remuneration. (3) The Attorney General may take six days of casual leave and six days of festival leave each year. (4) The Attorney General shall be entitled to home leave at the rate of one day for every eleven days of service rendered.

Home leave may be accumulated up to a maximum of one hundred fifty days. For the purpose of calculating the period of service rendered for home leave, days on which casual leave, festival leave and public holidays are taken shall also be counted as days worked.

(5) If the Attorney General has accumulated home leave exceeding one hundred twenty days, the Attorney General may, in respect of the home leave accumulated up to the end of Chaitra (mid-April) each year out of such excess home leave, receive a lump sum amount calculated at the rate of the remuneration being

received by him/her for up to a maximum of thirty days of home leave by the end of the same fiscal year.

(6) The Attorney General shall be entitled to sick leave at the rate of fifteen days each year. Such sick leave may be accumulated indefinitely. If the Attorney General contracts a serious illness and submits a certificate from an approved doctor, if no sick leave remains, the Attorney General may receive up to two months of sick leave with remuneration, and after taking such additional sick leave with remuneration, may receive sick leave without remuneration for up to an additional four months at a time, not exceeding twelve months in total during the service period. Provided that when taking such additional sick leave with remuneration, for every two days of additional sick leave taken, one day of home leave shall be deducted.

(7) If the Attorney General himself/herself has to observe the mourning period (Kiriya), the Attorney General shall be entitled to bereavement leave for up to a maximum of fifteen days depending on the religious tradition.

(8) The Attorney General may be entitled to special leave as follows:

(a) Not exceeding one month at a time, and

(b) Not exceeding a total of three months during the entire service period.

(9) If any person holding a constitutional office or in the service of the Government of Nepal is appointed to the post of Attorney General, such person shall not be deprived of enjoying his/her right relating to accumulated leave during the period of holding such office or service.

(10) If the Attorney General retires from office, the Attorney General shall receive a lump sum amount calculated at the rate of the remuneration being received from the office held by him/her for the home leave and sick leave accumulated pursuant to subsections (4) and (6). 15.

Authority to Grant Leave: (1) Among the leaves mentioned in Section 14, the Attorney General may take festival leave and casual leave by himself/herself, and other leave shall be approved by the Prime Minister omitted by the Some Nepal Laws Amendment Act, 2063.. (2) The Attorney General shall provide information about the leave taken pursuant to subsection (1) to the amended by the Some Nepal Acts Amendment Act, 2072. Office of the Prime Minister and Council of Ministers. Chapter-4 Medical Expenses, Pension and Gratuity 16. Medical Expenses: (1) When the Attorney General falls ill and undergoes treatment, medical expenses shall be paid as follows: (a) Expenses as per the hospital bill incurred when hospitalized and undergoing treatment, and expenses for medicines purchased as per the prescription of the hospital doctor. Provided that the prescription must include a diagnosis of the illness. (b) Expenses as per the bill incurred for all types of surgical operations, excluding plastic surgery. Provided that expenses for surgery performed in a private nursing home shall not be paid. (c) Expenses as per the bill incurred, within the amount prescribed by the Government of Nepal, for equipment such as spectacles, dentures, hearing aids, etc. (2) Notwithstanding anything contained in subsection (1), the total amount of medical expenses the Attorney General receives during his/her term of office shall not exceed an amount equal to twelve months' remuneration. Added by the First Amendment.(2A) If the Attorney General's spouse, mother, father, son or daughter living in joint family falls ill, the Attorney General shall receive ninety percent of the medical expenses incurred as per the bill, to be deducted from the maximum medical expense amount payable under subsection (2), up to half of such amount. When claiming such medical expenses, a medical certificate containing the diagnosis of the illness must be submitted. Provided that the medical expenses receivable under this subsection shall not exceed one month's remuneration of the Attorney General at one time. Added by the First Amendment.(2B) If the Attorney General's spouse, mother, father, son or daughter living in joint family falls ill and must be taken

abroad for treatment, or must be hospitalized in Nepal for surgery or treatment, the Attorney General shall receive ninety percent of the expenses as per the hospital bill and the medicine and treatment expenses as per the hospital doctor's prescription, from the amount receivable by the Attorney General pursuant to subsection (2).

Added by the First Amendment.(2C) Notwithstanding anything contained in subsections (2A) and (2B), if the Attorney General's spouse, mother or father, son or daughter living in joint family is a serving employee in any constitutional office, government service, or in a service of an institution under government ownership or control, such medical expenses shall not be paid. Added by the First Amendment.(2D) If the Attorney General claiming medical expenses under this section is ill to the extent of being unable to attend the office, he/she must claim sick leave as long as sick leave remains. Only when there is no sick leave may he/she claim other leave. Added by the First Amendment.(2E) Details of medical expenses received by the Attorney General under this section shall be kept in the leave record and personal record of such Attorney General.

(3) If a committee of doctors appointed by the Government of Nepal recommends that the Attorney General cannot be treated with medicines within Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and the Attorney General wishes to go abroad for treatment, the Government of Nepal may provide the Attorney General additional financial assistance as deemed appropriate by the Government of Nepal, in addition to the medical expenses receivable under subsection (1).

(4) When the Attorney General leaves service, if some medical expenses remain unutilized, either partially or fully, from the medical expenses receivable under subsection (2), the Attorney General shall receive a lump sum amount equal to two-thirds of such remaining amount. Provided that an Attorney General who retires from service so as to receive a pension shall receive the entire remaining amount as a lump sum.

(5) Notwithstanding anything contained in subsection (4), an Attorney General who leaves service without serving for five years in the post of Attorney General shall, when receiving medical expenses, be calculated as if the total medical expenses receivable under this Act were for serving five years, and shall receive only the proportionate amount.

(6) If the Attorney General dies before receiving the medical expenses receivable under this section, the person determined to receive family pension or gratuity under Section 18 shall be entitled to receive such medical expenses. 17.

Pension and Gratuity: (1) If a person holding a constitutional office or serving in the Government of Nepal, or a person retired from such service, is appointed to the post of Attorney General and retires from service, if the total period of previous service and service in the post of Attorney General, when calculated, amounts to twenty years or more, such person may choose either an amount equal to two-thirds of his/her monthly remuneration or a monthly pension calculated as follows: Total years of service x Monthly remuneration 50 Explanation: For the purposes of this clause, "period of service in government service" means the period of service rendered by being appointed to any pensionable post by the Government of Nepal. Added by the First Amendment.(1A) Notwithstanding anything contained in subsection (1), if a person who has completed a service period of ten years in the post of Attorney General retires from service, such person shall receive a monthly pension equal to two-thirds of his/her monthly remuneration. (2) An Attorney General who retires from service without completing the service period required for pension under subsection (1) added by the First Amendment. or (1A) shall be given a gratuity as a lump sum amount calculated by multiplying the total years of service rendered by the amount of one and a half months' remuneration being received at the time of retirement. Proviso clause omitted by the First Amendment (3) If any person who has already received a

gratuity for serving in a constitutional office or in the Government of Nepal is appointed to the post of Attorney General, only if such person repays the entire amount of the gratuity previously received within one year of such appointment, shall the previous service period be added amended by the First Amendment. for the purpose of pension. (4) The amount of gratuity receivable by the Attorney General under this section shall not exceed an amount equal to twelve months' remuneration of the Attorney General. (5) When the remuneration of the Attorney General is increased, an amount equal to two-thirds of the increase in the remuneration amount amended by the First Amendment. shall also be added to the amount of pension of the Attorney General who is receiving pension. (6) If a person who is already receiving a pension for serving in a constitutional office or in the Government of Nepal is appointed to the post of Attorney General and also becomes entitled to receive a pension under this Act, such person may choose either the pension previously being received or the pension receivable under this Act.

Amended by the First Amendment.(7) For the purposes of calculating the service period under subsection (1A), half of the total period worked in a constitutional office or in a government service post or in both such posts shall be added and calculated. 18. Family Pension and Gratuity: (1) If the Attorney General has designated any member of his/her family, to such designated person, and if such designated person also dies, or if no one has been designated, to the nearest heir among the members of his/her family, the pension under Section 17 shall be paid on the following basis:

(a) If the Attorney General dies while in office, for a period of seven years from the date of death,
(b) If the Attorney General dies before completing seven years of receiving pension under Section 17, for the remaining period to complete such seven years.

(2) If the Attorney General dies while in office and is not entitled to receive a pension under Section 17 but only a gratuity, the amount of such gratuity shall be received by the person among the members of his/her family as referred to in subsection (1).

(3) After the period for receiving family pension under subsection (1) has been fully paid, the widowed wife or widower of the deceased Attorney General shall be entitled to receive half of such pension for life. Provided that if such person is already receiving a pension for government service rendered by them, they shall not receive the pension under this subsection. Added by the First Amendment.(4) When the remuneration of the Attorney General is increased, an amount equal to two-thirds of the increase in the remuneration amount shall also be added to the amount of family pension being received by a person under subsection (1) or (3).

Chapter - 5

Miscellaneous

19. Provident Fund: The Government of Nepal shall deduct ten percent from the monthly remuneration of the Attorney General as a provident fund, add an equal one hundred percent amount to such deducted amount, and deposit it in the provident fund. Added by the First Amendment.19A. Entitlement to Daily and Travel Allowance: An Attorney General who has worked for three years in the post of Attorney General shall, when going to his/her home during the home leave taken by him/her and when returning from home, receive daily and travel allowance once a year at half the rate of the daily and travel allowance receivable under this Act. Provided that family members shall not receive daily and travel allowance. Added by the First Amendment.19B.

Transit Period: When the Attorney General goes home on home leave and when returning from home to report for duty at his/her office after completing home leave, the Attorney General shall receive a transit period once a year at the rate of one day for every eight kos (approx. 3 miles) for foot routes, and as many

days as required for motor vehicle, train, or airplane routes. Provided that transit period shall not be given for going to or staying elsewhere other than home during home leave. When granting transit period, the shortest route by the fastest means shall be considered, and the actual days for going and coming shall not be exceeded.

20. Addition to Remuneration and Other Facilities: The Government of Nepal may, by publishing a notice in the Nepal Gazette, amend the Schedules and add to the remuneration and facilities receivable by the Attorney General under this Act. Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

21. Taking Oath: Before assuming the functions of his/her office, the Attorney General shall take the oath of office and secrecy as per Schedule-2A before the Chief Justice.

22. Repeal and Savings: (1) The Attorney General (Conditions of Service) Rules, 2020 are hereby repealed. (2) Any pension facility being received by a person appointed to the post of Attorney General before the commencement of the Constitution of the Kingdom of Nepal, 2047, under the Attorney General (Conditions of Service) Rules, 2020, shall be deemed to have been received under this Act. (3) Any remuneration and facilities received by the Attorney General before the commencement of this Act shall be deemed to have been received under this Act.

Schedule-1 (Relating to Sections 3, 4, 5, 7 and 10) Remuneration, Facilities and Allowances Payable to the Attorney General

S.No.	Type of Remuneration, Facility and Allowance	Rate of Remuneration, Facility and Allowance
Amended effective from 2070.4.1	as per notice published in Nepal Gazette dated 2070.5.10.1.	
1.	Remuneration Per month	Rs. 44,330.?
	and Special Allowance per month	Rs. 1000.?
2.	House Maintenance and Sanitation Facility Per month	Rs. 1,500.?
3.	Electricity, Water and Telephone Facility Per month	Rs. 1,200.?
4.	Daily Allowance Per day	Rs. 165.?
5.	Travel Allowance Per kos	Rs. 25.?
Amended effective from 2073.4.1	as per notice published in Nepal Gazette dated 2073.4.1.6.	
	Clothing Allowance	Rs. 7,000.?
	Remuneration fixed at	Rs. 71,950.?
	effective from 2076.4.1	as per decision of the Government of Nepal (D.P.) dated 2076.5.4.

Schedule-2 (Relating to clause (a) of subsection (2) of Section 7) Daily Allowance Payable to the Attorney General When Traveling Abroad

Countries	US Dollar
SAARC Countries	100
Other Countries	125

Schedule-2A (Relating to Section 21) Oath I, ..., do solemnly promise / swear in the name of God that, being fully loyal to the country and people, and remaining fully faithful to the Constitution of Nepal, amended by the Some Nepal Acts Amendment Act, 2072. wherein the state authority and sovereignty of Nepal are vested in the Nepali people, I will perform the functions of the office of Attorney General honestly, without fear, favor, prejudice or ill will, in accordance with the prevailing law, in the true interest of the country and people; and I will not, in any manner, disclose or signify, except in compliance with law, any matter coming to my knowledge in the course of discharge of my duty, whether while holding this office or thereafter.

Signature Added by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

Schedule-3 Repealed by the Some Nepal Laws Amendment Act, 2063.